

HCS HB 1696 -- RIGHT OF SEPULCHER

SPONSOR: Christensen

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Children and Families by a vote of 14 to 0. Voted "Do Pass" by the Standing Committee on Rules-Legislative by a vote of 10 to 0.

The following is a summary of the House Committee Substitute for HB 1696.

Current law establishes next-of-kin as it relates to the right of sepulcher to include any surviving parent of the deceased.

This bill modifies these provisions to have the surviving parent be considered next-of-kin if the deceased is not a minor. If the deceased is a minor with a court-appointed guardian, then the court-appointed guardian is to be considered next-of-kin unless such person is being investigated for his or her role in the death of the minor.

If the court appointed co-guardians, the guardian specifically granted the right of sepulcher by the court has the superior claim; if the court did not specifically grant such a right to one guardian, the guardian whose residence is the minor child's residence has the superior claim.

Additionally, if the deceased is a minor without a court-appointed guardian, a surviving parent with custody of the minor is considered next-of-kin. If the deceased is a minor without a court-appointed guardian and the parents have joint custody, the parent whose residence is the minor child's residence is considered next-of-kin.

The bill provides that religious, cultural, family, and individual beliefs of the deceased person must be considered when disposing of any human remains.

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPONENTS: Supporters say that caring for traumatized children involves constant and active intervention, daily emotional regulation, the redirecting of harmful thoughts, and interrupting self-blame. Healing requires consistency and presence, and

children in these situations need more than just a place to stay, they deserve to have someone willing to take on the emotional labor required, even if the child dies.

Testifying in person for the bill were Representative Christensen and Sydney Arnold.

OPPONENTS: There was no opposition voiced to the committee.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.